

25STCV22041 25STCV22041

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-15

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Case Number: 25STCV22041 Hearing Date: July 15, 2026 Dept: 529

DESIGNING IN

COLOR INC., et al. vs CHRISTOPHER LOCKE, et al.

motion for leave to file cross-complaint

Date

of Hearing: July

15, 2026 Trial

Date: None

set.

Department: 529 Case No.: 25STCV22041

Moving

Party: Defendants Christopher

Locke

Responding

Party: No opposition

BACKGROUND

On July 25, 2025, Plaintiffs Designing

in Color Inc., Opalia Meade, and Rubin Quarcoopome filed a complaint against

Defendants Christopher Locke and DCo Collective LLC for 1. Fraudulent

Inducement; 2. Breach of Written Contract; 3. Breach of Fiduciary Duty; 4.

Conversion; 5. Trademark Infringement (Cal. Bus. & Prof. Code § 14245;

Common Law); 6. Violation of Business & Professions Code § 17200 (Unfair

Competition Law); and 7. Declaratory Relief 8. Injunctive Relief.

[Tentative] Ruling

Defendant Christopher Locke's Motion for
leave to File Cross-Complaint is GRANTED.

discussion

Defendant Christopher Locke move this
court for leave to file a cross-complaint against Robinson Zermay, LPP and
Alexander Robinson, Esq. on the grounds the (1) the proposed cross-complaint
arises from the same transaction and occurrence as Plaintiff's complaint; (2) leave
to file is in the interest of justice; and (3) no party will suffer prejudice
from the filing of the cross-complaint.

A party against whom a cause of action
has been asserted in a complaint may file a cross-complaint setting forth any
cause of action against non-parties if the cross-complaint
asserts causes of action arising out of the same transaction or occurrence
as the cause brought against him. (CCP §428.10(b)(1).) Any
cross-complaint against a non-party may be filed at any time before the court
has set a date for trial. (CCP §428.50(b).) Moreover, leave to file
compulsory cross-complaints must be granted where moving parties acted in good
faith. (CCP §426.50; *Silver Organizations, Ltd. v. Frank* (1990)
217 Cal.App.3d 94, 98-99.) A determination that the petitioner acted in
bad faith may be premised on "substantial injustice or prejudice" to the
opposing party. (*Foot's Transfer & Storage Co. v. Superior Court* (1980)
114 Cal.App.3d 897, 903; see also *Gherman v. Colburn* (1977)
72 Cal.App.3d 544, 558-59 [stating that leave was properly denying when the
defendant's motion "was merely a tactical strategic maneuver to deprive
plaintiffs of a right to a jury trial"].)

Here, Defendant moves for leave to file
the proposed cross-complaint on the grounds it arises out of the same
occurrence, namely, the dissolution of Designing in Color Inc., Locke's
departure from the company, and his formation of a new business entity. Accordingly,
judicial economy is best served by resolving the cross-complaint before the
same tribunal. Defendant also contends he acted promptly by formally demanding
defense and indemnification, requested a tolling agreement and received no

response before filing this motion. Moreover, trial is not scheduled until March 2027, which affords ample time to conduct cross-complaint discovery.

The motion is unopposed. Based on the foregoing, Defendant Christopher Locke's Motion for leave to File Cross-Complaint is GRANTED.